

Nirmala vs Bakshi Bhushan Ors on 12 December, 2025

IN THE COURT OF MS. SHAGUN SHARMA, DISTRICT
JUDGE-12, CENTRAL DISTRICT, TIS HAZARI COURT,
DELHI

CS DJ No. 617199/16
CNR No.DLCT01-000896-2011

Amended Memo of Parties

Mrs. Nirmala,
Wd/o of Sh. Bakshi Ashok,
R/o A-7, Tikri Khurd Village,
Near Narela, Delhi.

.... Plaintiff

Versus

1. Mr. Bakshi Bhushan,
(Since deceased represented through LRs from D5 to D9),
S/o Late Sh. Bakshi Chander Bhan,
R/o B-3, 1st floor,
Traffic Police Staff Quarters,
Toda Pur Road,
New Delhi.

2. Mr. Chetan,
S/o late Smt. Rano,
R/o 3/37, Old Rajinder Nagar,
New Delhi.

3. Ms. Panna Devi,
D/o Late Mr. Bakshi Chander Bhan,
R/o 3/37, Old Rajinder Nagar,
New Delhi.

4. Ms. Heera Devi,
D/o Late Mr. Bakshi Chander Bhan,
R/o 3/37, Old Rajinder Nagar,
New Delhi.

CS DJ No. 617199/2016
Ms. Nirmala Vs Mr. Bakshi Bhushan & Ors.

Page 1 of 22

5. Mr. Deepak Bakshi,
S/o Late Mr. Bhushan Kumar Bakshi,
R/o 3/37, Old Rajender Nagar,
Rajender Nagar, Central Delhi,

Delhi-110060.

6. Mrs. Ritu,
W/o Iqbal Singh,
R/o WZB-36T/F L/S Part 1,
Vishnu Garden,
PO Tilak Nagar,
West Delhi, Delhi-110018.

7. Ms. Bhawna Bakshi.
D/o Bhushan Kumar,
R/o Plot N144 F/F Meera Enclave,
Ranhola Extension,
Nangloi, West Delhi,
Delhi - 110041.

8. Mr. Vikram Tara,
(Since Deceased represented through L.Rs from D10 to D12)
S/o Bhushan Kumar,
R/o 3/37, Old Rajender Nagar,
Rajender Nagar, Central Delhi,
Delhi-110060.

9. Mr. Nikhil Bakshi,
S/o Bhushan Kumar,
R/o 3/37, Old Rajender Nagar,
Rajender Nagar, Central Delhi,
Delhi-110060.

10. Mrs. Shobha Tara,
W/o Late Sh. Vikram Tara,
R/o 3/37, Old Rajender Nagar,
Central Delhi, Delhi-110060.

11. Mr. Piyush Tara,
S/o Late Sh. Vikram Tara,

CS DJ No. 617199/2016

Ms. Nirmala Vs Mr. Bakshi Bhushan & Ors.

Page 2 of 22

R/o 3/37, Old Rajender Nagar,
Central Delhi, Delhi-110060.

12. Nandini Tara,
(since minor represented through mother/Defendant no.10)
D/o Late Sh. Vikram Tara,
R/o 3/37, Old Rajender Nagar,
Central Delhi, Delhi-110060.

... Defendants

Date of institution of the suit	:	14.10.2011
Date on which judgment was reserved	:	26.11.2025
Date of pronouncement of judgment	:	12.12.2025

Decision

: Dismissed.

SUIT FOR PARTITION, PERMANENT INJUNCTION
& DECLARATION

JUDGMENT

1. Vide this judgment, this Court shall decide the suit filed by the Plaintiff seeking relief of Partition , Permanent Injunction and Declaration.

2. Brief Factual Matrix- as culled out from the Complaint and germane to the present lis is that the plaintiff was first married to Sh. Bal Kishan about 26 years ago, and out of the said wedlock seven children were born, all of whom are major. Sh. Bal Kishan expired on 27.06.1992. Thereafter, the plaintiff who belongs to Balmiki community, married Sh. Bakshi Ashok, son of Sh. Bakshi Chander Bhan, according to customary law and their marriage was accepted by the relatives of Sh. Bakshi Ashok. After marriage, the plaintiff and her husband started residing in Jhuggi No. W/76/109, Indira Gandhi Amar Colony Camp, Karol Bagh, New Delhi. Sh. Bakshi Ashok, who was running a dairy farm, continued to reside with the plaintiff at the aforesaid premises.

3. It is further averred that in the year 1996, the said jhuggies were demolished and, in lieu thereof, Plot No. A-79, Tikri Khurd, J.J. Colony, Narela, Delhi, was allotted jointly in the names of the plaintiff and her husband, Sh. Bakshi Ashok vide possession letter dated 08.03.1996. It is further averred that the allotment record contains the joint photograph of the plaintiff and her husband, which shows that the plaintiff is the lawful and legally wedded wife of Sh. Bakshi Ashok.

4. It is further averred that the sisters and mother of Sh. Bakshi Ashok used to visit the plaintiff's residence and accepted the plaintiff as his wife. Sh. Bakshi Ashok expired on 15.07.2011 at Satyawadi Raja Harish Chandra Hospital, Narela, where he was admitted on 14.07.2011 at 9:55 a.m. due to illness. Intimation was immediately given to defendant nos. 1 to 4, who came to the hospital and assured that they would get him admitted to a better hospital. The cremation was performed by the plaintiff and relatives of the deceased. However, defendant no. 1 mentioned the name of the deceased as "Bakshi Ashok Tara" in the cremation records. When defendant nos. 1 to 4 resisted handing over the ashes to the plaintiff, the cremation ground authorities retained the ashes in the locker.

5. It is further averred that property bearing No. 3/37, Old Rajinder Nagar, New Delhi, measuring 85 sq. yards, was allotted by the Rehabilitation Department in the name of Sh. Bakshi Chander Bhan, father of the plaintiff's husband, who migrated from Pakistan after partition. Sh. Bakshi Chander Bhan died intestate, leaving behind his legal heirs, namely, the plaintiff's husband and defendant nos. 1 to 4. During his lifetime, Sh. Bakshi Ashok, along with defendant no. 1 and other legal heirs, entered into a collaboration agreement with defendant no. 5 for construction of a multi-storeyed building over the said property.

6. It is further averred that after the death of her husband, the plaintiff, being his legally wedded

wife, requested defendant nos. 1 to 4 on 20.09.2011 to partition the aforesaid property. The defendants refused to give any share to the plaintiff and instead extended threats to the plaintiff and her children. Defendant no. 1, who is serving in Delhi Police, threatened to falsely implicate them in criminal cases. The defendants also told the Plaintiff that as the plaintiff belongs to the Balmiki community, they would not accept her as the wife of Sh. Bakshi Ashok.

7. It is further averred that plaintiff came to know that defendant nos. 1 to 5, in connivance with local police and MCD officials, were planning to raise unauthorized construction over the undivided property. The plaintiff visited the local police station on 06.10.2011 to lodge a complaint regarding the unauthorized construction, but no action was taken, nor was her complaint received. The plaintiff has therefore instituted the present suit.

8. WRITTEN STATEMENT - Defendants have averred that the present suit is not maintainable as the plaintiff is not the wife of Shri Bakshi Ashok Tara and thus has no claim whatsoever over his property. The plaintiff is working with the Municipal Corporation of Delhi as a Safai Karamchari, and such employment was obtained on "compassionate grounds" after the death of her husband, Shri Bal Kishan, in the year 1992. It is further averred that if the plaintiff had re-married after the death of Shri Bal Kishan, she would not have been eligible to continue in service on compassionate grounds; therefore, the plaintiff's claim that she married Shri Bakshi Ashok Tara is inherently false. The defendants state that Shri Bakshi Ashok Tara, who was the brother and uncle of the defendants, remained unmarried throughout his life and expired on 15.07.2011.

9. The defendants categorically deny that the plaintiff is the legally wedded wife of Shri Bakshi Ashok Tara and contend that the entire story narrated in the plaint is fabricated. If such a marriage ever took place, the same would have been known to the defendants as his siblings and nephew, and documents pertaining to Shri Bakshi Ashok Tara would necessarily reflect the plaintiff's name as his spouse. It is further averred that plaintiff does not even know the complete name of the person she alleges to be her husband. The defendants further state that they had filed a complaint dated 01.03.2012 before SHO, P.S. Rajinder Nagar, as the plaintiff had come to their house, abused defendant no.1, the chowkidar and his family, and the labourers at the site, and was blackmailing defendant no.1 by demanding money and threatening to file false cases.

10. It is further averred that the defendants have tried to find out officially the details of the plaintiff by filing RTI application with MCD requesting the information like plaintiff's post, details of her husband and family, whether she is appointed to the said post of 'Safai Karamchari' on compassionate ground etc. but they were informed by the CPIO that the plaintiff has denied the supply of her personal details to the defendants. The plaintiff's reluctance to disclose her details to defendants under RTI shows plaintiff's ill-design to come up with a false and frivolous suit against the defendants. Lastly, the defendants were successful in getting a RTI reply from the Commissioner, MCD wherein the name of her husband as per records is Sh. Bal Kishan and she is permanent resident of W-Z 100, Palam Gaon, Delhi. Defendants have placed reliance on documents i.e application for passport in 2008 and application for substitution of titles at LNDO in 2011 to aver that Late Sh. Bakshi Ashok Tara had clearly mentioned his marital status as "unmarried" in the aforesaid documents.

11. It is further averred that the plaintiff was merely one of the helpers/maids whom Shri Bakshi Ashok Tara had employed to clean the dairy farm that he was running. It is further submitted that an FIR No. 148/1999 under Sections 304/34 IPC was registered against the plaintiff at P.S. Karol Bagh, and in her own bail application dated 10.05.1999, she admitted that she was not the wife of Shri Bakshi Ashok Tara. Thus, if the plaintiff now claims that she was married to him in 1996 on the basis of a plot allotment letter, it is completely contradictory to her own statement of 1999, exposing the falsity of her claim. The defendants state that the plaintiff along with her two sons, Ajit and Amit, attempted to claim workman benefits after the death of Shri Bakshi Ashok Tara by filing an application under Order 22 Rule 3 read with Section 151 CPC, but this claim is also false because the plaintiff herself has admitted in the plaint that she had seven children from her first marriage and has shown no child from the alleged marriage with Shri Bakshi Ashok Tara. The ration card of the plaintiff also contains the names of those seven children, proving that all of them are from her first husband.

12. The defendants further state that no document of Shri Bakshi Ashok Tara mentions the plaintiff as his wife or nominee, and the plaintiff has deliberately avoided filing her own identity documents such as her Election ID because that shows her husband's name as Shri Bal Kishan. The plaintiff relies only on an allotment letter and one electricity bill pertaining to Plot No. 79, Tikri Khurd, which the defendants believe may have been procured with ulterior motives. The defendants aver that they even filed RTI applications with MCD to verify the plaintiff's records, but the plaintiff refused to allow disclosure of her employment details; however, from the RTI response obtained from the Commissioner, MCD, it stands confirmed that her husband's recorded name is Shri Bal Kishan. It is further submitted that in documents such as passport application of 2008 and application for substitution of title before LNDO in 2011, late Shri Bakshi Ashok Tara had clearly declared his marital status as "unmarried," confirming that he was a bachelor throughout his life. The defendants therefore submit that the plaintiff has no cause of action to file the present suit and that the same is misconceived, frivolous, vexatious, and filed only with the motive of extracting money.

13. REPLICATION - Plaintiff denied the contents of the Written Statement and reaffirmed and reiterated her stand as stated in the Plaint. Plaintiff specifically denied that she was working as a helper with late Shri Bakshi Ashok Tara. It is stated that the plaintiff was temporarily working with MCD and, after the death of her first husband, married late Shri Bakshi Ashok Tara and resided with him. Plaintiff has also averred in her replication that it is right that the Plaintiff did not remarry Bakshi Ashok.

14. ISSUES - Vide order dated 26.11.2012, the following issues were framed by the Ld. Predecessor of the Court-

(i) Whether the suit of the plaintiff is not maintainable in its present form? OPD

(ii) Whether the Plaintiff is entitled to a decree of declaration as prayed for ? OPP

(iii) Whether the Plaintiff is entitled to a decree of partition as prayed for and if so, to what share? OPP

(iv) Relief.

PLAINTIFF'S EVIDENCE

15. Plaintiff has examined as many as three witnesses including herself. PW 1 Smt. Nirmala tendered her evidence by way of affidavit vide Ex. PW-1/X. She reiterated the contents of her plaint and has relied upon the following documents:-

i. Photocopy of possession letter dated 08.11.1996 is Ex.

PW1/A (OSR). The photo affixed on Ex. PW1/A is marked A. ii. Site Plan is Ex. PW 1/B. iii. Photocopy of Police complaint dated 26.09.2011 is Ex.

PW 1/C (OSR).

16. Thereafter, she was cross examined by Ld. Counsel for defendant on 18.4.2018 and 28.8.2018.

17. Vide order dated 28.8.2018 , the following observations were made about Plaintiff i.e. PW1 by the Ld . Predecessor of the Court :-

"At this stage, it is noticed that the witness keeps mumbling something on her own and is not properly responding to the questions put to her by Ld. Defence counsel. The witness is not replying coherently to the questions put to her and her answers are not making sense. She is not found competent enough to depose for the plaintiff. With the consent of Ld. counsel for plaintiff, the testimony of this witness is discarded and dropped from consideration".

18. Thereafter, Smt. Ganga Devi was examined as PW2 and tendered her evidence affidavit as Ex. PW2/A. She was cross examined by Defendants.

19. Smt. Renu was examined as PW3 and tendered her evidence by way of affidavit as Ex. PW3/A. She has relied on SPA dated 18.7.2017 as Ex.PW3/1 and documents already exhibited as Mark A, Ex. PW1/A to Ex.PW1/C. She was cross examined by Defendants.

20. Thereafter PE was closed on 11.04.2019 and matter was listed for DE.

21. Defendant's evidence:- Smt. Suman Midha was examined as DW1. She has been examined by way of her affidavit as Ex. DW1/1. She has relied upon the following documents:

1. Copy of passport application form of Late Sh. Bakshi Ashok Tara is Mark DW1/A;

2. Copy of affidavit of Late Shri Bakshi Ashok Tara is Mark DWI/B;
3. Copy of application dated 25.08.2011 is Mark DW1/C;
4. Copy of cremation ground receipt dated 16.07.2011 is Mark DW1/D;
5. Copy of statement given by Smt. Nirmala before PS Rajinder Nagar is already Mark C.
6. Copy of application for granting bail dated 10.05.1999 before Ld. Sessions Court in FIR No. 148/99 is Mark DWI/F;
7. Copy of passport of Late Shri Ashok Kumar Tara in Mark DWI/G;
8. Copy of ESIC card of Late Shri Bakshi Ashok Tara is Mark DWI/H;
9. Copy of application for substitution of title before L&DO filed by defendants no. 1, 4 and late Shri Bakshi Ashok Tara is Mark DW1/I.

22. Sh. Sunil Dutt was examined as DW-2. He was a summoned witness. He brought the signed application dated 15.03.2011 for substitution of the title pertaining to H.No.3/37, Old Rajender Nagar, New Delhi-60. The copy of the application was exhibited as Ex.D1/I.

23. Shri Giri Raj Sharma was examined as DW3. He was a summoned witness. He brought the attested documents taken out from the computer viz. passport application form dated 31.03.2008, personal particular form dated 'nil', affidavit dated 07.04.2008 and general details of the applicant bearing passport no. G9195371. The above documents were exhibited as Ex.DW3/1-colly.

24. Vide order dated 28.01.2020, opportunity for cross examination of DW2 and DW3 was closed by my Ld. Predecessor.

25. Sh. S. S. Dixit, Senior Secretariat Assistant from MCD, Karol Bagh was examined as DW-4. He was a summoned witness and brought the summoned record i.e. , the service book and personal file of Ms. Nirmala W/o Bal Kishan. Additionally, he also brought the submission of reply with reference to the present case, dated 01.03.2024 n□ 2054/AO/DEMS/2024 issued by Administrative Officer, Dems, Karol Bagh Zone. The aforesaid document dated 01.03.2024 is Ex. DW4/1 (colly two pages). He submitted that the attested copy of the front page of the service book of Ms. Nirmala w/o Sh. Bal Kishan shows that she is still working in the MCD office as Regular Safai Karamchari.

26. He submitted during his cross examination that as per record , there is no official communication received From Ms. Nirmala regarding death of her husband Sh. Bal Kishan, however, there is one entry i.e. photocopy of letter dated 02.11.2001 addressed to the Assistant Law Officer for sending the personal file to the Zone in which Ms. Nirmala has mentioned herself as w/o Late Bal Kishan. The copy of the letter dated 02.11.2001 was marked as Mark DW4/DX.

27. Mr. S. S. Dixit who was recalled for his re-examination and confronted with official document Ex. DW4/3 (colly.).

28. Thereafter, D E was closed and the matter was listed for Final arguments.

29. I have considered the pleadings, the evidence of the parties, the documents on record, the written arguments and the authorities relied upon. Plaintiff has relied upon the judgment titled as Shivam Sonkar and Another Vs. State of UP and others Writ No. 9332/2023 passed by Hon'ble High Court of Judicature at Allahabad, J.Mohan Vs. Rukkumaniammal SA No. 1038 of 2011 passed by Hon'ble High Court of Madras . Defendants have relied upon the judgments titled as Smt. Shiramabai w/o Pundalik Bhawe & Ors. Vs. The Captain, Record Officer for O.I. C, Records, Sena Corps Abhilekh, Gaya, Bihar State & Anr. Civil Appeal No. 5262/2023 passed by Hon'ble Supreme Court of India, Thakur Gokalchand Vs. Parvin Kumar, 1952 AIR 231, passed by Hon'ble Supreme Court, Dolly Rani Vs. Manish Kumar Chanchal, Transfer Petition (C) No(s). 2043/2023 passed by Hon'ble Supreme Court of India, Bai Appibai Vs. Khimji Cooverji, AIR 1936 Bom. 38 passed by Hon'ble High Court of Bombay, Bhaurao Shankar Lokhande and Anr. Vs. State of Maharashtra and Anr. AIR 1965 SC 1564 passed by Hon'ble Supreme Court of India, UOI V. Sr Tewari and Anr., MANU/DE/0345/2012 passed by Hon'ble Delhi High Court, Aliyathammuda Beethathebiyyapura Pookoya and Anr. Vs. Pattakal Cheriyaakoya and Ors., (2019) 16 SCC 1 passed by Hon'ble Supreme Court of India.

ISSUE-WISE DETERMINATION (JUDICIAL ANALYSIS AND REASONING)

30. Issue No. 2 is taken up first as its determination will assist in the adjudication of the remaining issues.

31. Issue No. 2 - Whether the plaintiff is entitled to a decree of declaration as prayed for? (OPP)

32. The onus to prove this issue was on the Plaintiff. The case of the Plaintiff is that she married Late Bakshi Ashok as per customary rites after the death of her first husband, Balkishan, and therefore, being the widow of Late Bakshi Ashok , she is entitled to seek partition of the suit property. Per contra, the Defendants have vehemently denied that any such marriage ever took place, asserting that Late Bakshi Ashok Tara died a bachelor, and therefore the suit is not maintainable.

33. Any person entitled to any legal character or right to any property may institute a suit against any person denying such character or right, and the Court may, in its discretion, make a declaration to that effect. Thus, declaratory relief is available only to a person who establishes a legal character or right.

Accordingly, the Plaintiff must first prove the factual basis of the declaration sought i.e , her alleged marriage with Late Bakshi Ashok.

34. The seminal questions, therefore, are:

(i) Whether the Plaintiff has proved that she married Late Bakshi Ashok by customary rites and thereby acquired any legal status or right in the suit property; and

(ii) If not, whether any presumption of marriage arises from cohabitation or conduct.

35. To prove her case, Plaintiff examined herself as PW-1 and produced two additional witnesses i.e PW-2 Smt. Ganga Devi (sister of the Plaintiff) and PW-3 Renu (daughter and SPA holder). The Plaintiff relied upon Photocopy of possession letter dated 08.11.1996 is Ex. PW1/A, . The photo affixed on Ex. PW1/A marked A, Site Plan is Ex. PW 1/B, Photocopy of Police complaint dated 26.09.2011 is Ex. PW 1/C.

36. Plaintiff has relied upon the allotment document Ex PW1/ A in which the names of the Plaintiff and Late Ashok appear as "husband and wife"; two photographs showing the Plaintiff and Late Ashok standing together; and one photograph showing the Plaintiff allegedly performing widowhood rites (breaking bangles) over the dead body of Late Ashok to prove that she was married to Bakshi Ashok by customary form of marriage.

37. Claim of Customary Marriage- The claim of marriage by custom is a fact specifically pleaded by the Plaintiff and therefore must be proved by cogent evidence. Section 7 of the Hindu Marriage Act permits the solemnisation of a marriage according to the customary rites of the parties. However, the party pleading such custom must prove it through credible evidence. In the present matter , the plaint is bereft of material particulars like date of marriage and does not specify which custom governs the parties or what precise rituals constituted the alleged marriage. It was only during cross examination, it was for the first time stated that the marriage was solemnised through the customary form of "chunni chadhana".

38. It is argued that Plaintiff had performed one Shok Sabha at Rajinder Nagar for deceased Bakshi Ashok Tara dated 28.08.2011, however the same was performed after the Defendants had already performed the same on 26.07.2011. Moreover, the performance of shok sabha by itself does not prove the factum of marriage by customary practice. Though the plaint states that the marriage was performed in the presence of relatives, friends, and community members, no such witness has been examined, to prove the performance of "chunni chadhana". Resultantly, the Plaintiff has failed to prove that she married Late Bakshi Ashok Tara by customary rites or ceremony.

39. Photographs relied upon by Plaintiff - The Plaintiff relied on a joint photograph Ex.DW1/B, which at best shows the parties were together at some point in time. Plaintiff has relied on other photographs Ex.DW1/A (colly.)where plaintiff is breaking her bangles. A photograph or mere assertion is insufficient to establish marriage by customary rites. Further, the photographs relied upon by the Plaintiff are not accompanied by a certificate under Section 63 of BSA, 2023 and are therefore inadmissible. Even otherwise, the Defendants admit that the Plaintiff worked with Late Ashok at his dairy, and hence a mere photograph does not prove the performance of a marriage ceremony. In a judgment titled as S. Meena & Anr. V. Sivakumar & Ors. (A.S.No.900 of 2012) presided over by Hon'ble Mr. Justice G. Jayachandran the Madras High Court has stated that the

factum of marriage cannot be inferred from a single photograph where both persons are seen together.

40. Absence of Contemporaneous Records- Contemporaneous official records such as government identity documents, service records, voter ID, Aadhaar, and passport records are relevant and carry considerable evidentiary value in determining marital status. The allotment letter Ex. PW1/A relied upon by the Plaintiff, though describing the parties as "husband and wife", is unsupported by any official verification, attesting witness, or contemporaneous declaration. Without corroboration, it cannot be treated as proof of marriage. The Plaintiff produced no identity documents such as her ration card, voter ID, Aadhaar card, or service records showing Late Bakshi Ashok as her husband. In fact, her own service records and official documents placed on record by the Defendants continue to show the name of her first husband, Late Balkishan.

41. Further PW-2 admitted that she had no documentary proof of the alleged marriage and that the suit was filed by her father. PW-3 similarly admitted that she has no documentary proof of marriage and that all official records reflect Late Balkishan as the Plaintiff's husband. No other independent witness has been examined. Further, learned predecessor of the Court had observed vide order dated 28.8.2018 that Plaintiff did not appear to be in a fit state of mind to depose, as she was murmuring and not answering coherently. Consequently, with the consent of her learned counsel, her testimony was discarded. Even assuming, for the sake of argument, that her testimony is considered, a perusal of the same does not disclose any material to support her claim that she was married to Late Bakshi Ashok through a customary form of marriage.

42. Conversely, Defendants have consistently disputed the Plaintiff's claim and asserted that Late Bakshi Ashok died a "bachelor". The passport Mark DW1/A and identity documents show the marital status of Late Ashok as "nil", "single", or "unmarried", ESIC card Mark DW1/H, L&DO substitution application Mark DW1/I, and other records similarly records him as unmarried.

43. The DW-3 (Passport Office official) who produced the summoned record i.e passport documents i.e. Ex. DW3/1 (colly.) of Late Ashok Bakshi reflects "NIL" in the spouse column. DW-4 (MCD official) produced the Plaintiff's service record showing her husband's name as Late Balkishan. These are contemporaneous records and therefore deserve substantial weight. Plaintiff's own service record indicates that she secured employment with the MCD on "compassionate grounds", which is permissible only upon the death of her husband, namely Balkishan, and such compassionate appointment cannot continue if the beneficiary has remarried.

44. Question of Presumption from Cohabitation- The presumption of marriage from long and continuous cohabitation arises only where the parties live together as husband and wife over time and are recognised as such by society. The Plaintiff has failed to prove any long, continuous cohabitation. No neighbours, relatives, or colleagues who recognised them as husband and wife were examined by the Plaintiff in support of her claim.

45. Additional Material Undermining Plaintiff's Case- Plaintiff's MCD records and other documents exhibited as Ex. DW4/2, continue to show her husband as Late Balkishan. In a bail application

dated 10.05.1999 (Mark DWI/F), the Plaintiff herself stated that she is unknown to Bakshi Ashok and that he is not her husband. She stated that her husband was Late Balkishan and that she had seven children from that wedlock. This document is admitted by her. In her replication too, she stated that she did not remarry after the death of Late Balkishan.

46. In the passport application form of the deceased Bakshi Ashok (Mark-DWI/A) the column for name of spouse is blank, In Mark DW1/B (affidavit), the deceased Bakshi Ashok Tara states 'N.A.' in the space for the name of wife, In his passport (Mark DW1/G) also the space for the name of spouse is blank, In his Employees' State Insurance Corporation ID (Mark-DWI/H), the marital status of the deceased Bakshi Ashok Tara is "unmarried", In his LND O Application for Substitution of Title (Exb. DWI/I) as well, the marital status of the deceased Bakshi Ashok Tara is unmarried. The documents (Ex. DW3/1 Colly) provided by DW3 (Senior Passport Asst., Passport Office, Bhikaji Cama Place, Delhi) shows that the passport of the deceased Bakshi Asho Tara indicates "NIL" in column of spouse name of the passport holder. DW4 (Senior Secretariat Asst., MCD), in his examination dated 04.03.2024 states that the Plaintiff is still working as a Regular Safai Karamchari in MCD and that all her office records (Exb. DW4/1 Colly) shows the name of her husband as Balkishan/Late Balkishan.

47. Thus, no contemporaneous official record supports the Plaintiff's claim, while the records of Late Ashok and the Plaintiff own service records contradict it. The presumption from cohabitation does not arise, as neither cohabitation nor public recognition has been established. Accordingly, the Plaintiff has failed to establish that she was the legally wedded wife of Late Bakshi Ashok Tara, or that she acquired any legal character or right entitling her to seek a declaration or share in the suit property. Issue No. 2 is therefore decided against the Plaintiff and in favour of the Defendants.

48. Issue No. 1 - Whether the suit of the plaintiff is not maintainable in its present form? (OPD)

49. The onus to prove this issue was on Defendants. The defendants have pleaded, that the plaintiff was never married to the late Bakshi Ashok, and that the plaintiff was merely an employee/helper at the dairy run by the deceased. Plaintiff has failed to prove her marital status as discussed under Issue No. 2 and thus Plaintiff has no pre-existing share in the suit property which is a prerequisite for claiming partition. Resultantly, Issue No.1 is decided in favour of the Defendants and against the Plaintiff.

50. Issue No. 3 - Whether the plaintiff is entitled to a decree of partition as prayed for and if so, to what share? (OPP)

51. The onus to prove this Issue was on Plaintiff. A claim for partition presupposes a pre-existing right, title or share in the property in question. The plaintiff's claim to partition is premised on her alleged status as widow of the deceased. As discussed above, plaintiff has failed to prove the factum of marriage with the deceased and therefore she has no pre-existing proprietary right or share in the suit property. On the other hand, Defendants have adduced cogent documents and evidence which indicate that the deceased died unmarried. In view of the failure to establish any pre-existing share, Plaintiff is not entitled to a decree of partition as prayed for. Issue No.3 is therefore answered

against the plaintiff.

52. Issue No. 4 - Relief Plaintiff has failed to prove her primary contention that she was lawfully married to the deceased Bakshi Ashok. The plaintiff has therefore failed to establish any right, title or interest in the suit property which she seeks to partition or to have declared. Resultantly, the suit of the plaintiff is dismissed being devoid of merit. The plaintiff is not entitled to the relief of declaration or partition as claimed in the plaint.

53. Decree sheet be drawn accordingly.

54. Parties to bear their own costs.

55. Pending applications, if any , are disposed off accordingly.

56. File be consigned to record room after due compliance.

SHAGUN by SHAGUN
SHARMA
SHARMA Date: 2025.12.12
15:47:36 +0530

Announced in the open
Court on 12.12.2025

(SHAGUN SHARMA)
District Judge-12, Central District
Tis Hazari Court, Delhi

Certified that this judgment contains 22 pages and each page bears my signatures. SHAGUN Digitally signed by SHAGUN SHARMA SHARMA Date: 2025.12.12 15:47:44 +0530 (SHAGUN SHARMA) District Judge-12, Central Tis Hazari Court, Delhi